DRAFT

AIA® Document A312® – 2010

Payment Bond

CONTRACTOR:
(Name, legal status and address)
« »« »
« »

SURETY:
(Name, legal status and principal place of business)
« »« »
« »

OWNER:
(Name, legal status and address)
« »« »
« »

CONSTRUCTION CONTRACT
Date: « »
Amount: $ « »
Description:
(Name and location)
« »
« »

BOND
Date:
(Not earlier than Construction Contract Date)
« »
Amount: $ « »
Modifications to this Bond: « » None « » See Section 18

CONTRACTOR AS PRINCIPAL
Company: *(Corporate Seal)*

Signature: _____
Name and Title: « »« »

SURETY
Company: *(Corporate Seal)*

Signature: _____
Name and Title: « »« »

(Any additional signatures appear on the last page of this Payment Bond.)

(FOR INFORMATION ONLY — Name, address and telephone)

AGENT or **BROKER:**
« »
« »
« »

OWNER'S REPRESENTATIVE:
(Architect, Engineer or other party:)
« »
« »
« »
« »
« »
« »

ADDITIONS AND DELETIONS: The author of this document has added information needed for its completion. The author may also have revised the text of the original AIA standard form. An *Additions and Deletions Report* that notes added information as well as revisions to the standard form text is available from the author and should be reviewed.

This document has important legal consequences. Consultation with an attorney is encouraged with respect to its completion or modification.

Any singular reference to Contractor, Surety, Owner or other party shall be considered plural where applicable.

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User Notes: (1800747094)

§ 1 The Contractor and Surety, jointly and severally, bind themselves, their heirs, executors, administrators, successors and assigns to the Owner to pay for labor, materials and equipment furnished for use in the performance of the Construction Contract, which is incorporated herein by reference, subject to the following terms.

§ 2 If the Contractor promptly makes payment of all sums due to Claimants, and defends, indemnifies and holds harmless the Owner from claims, demands, liens or suits by any person or entity seeking payment for labor, materials or equipment furnished for use in the performance of the Construction Contract, then the Surety and the Contractor shall have no obligation under this Bond.

§ 3 If there is no Owner Default under the Construction Contract, the Surety's obligation to the Owner under this Bond shall arise after the Owner has promptly notified the Contractor and the Surety (at the address described in Section 13) of claims, demands, liens or suits against the Owner or the Owner's property by any person or entity seeking payment for labor, materials or equipment furnished for use in the performance of the Construction Contract and tendered defense of such claims, demands, liens or suits to the Contractor and the Surety.

§ 4 When the Owner has satisfied the conditions in Section 3, the Surety shall promptly and at the Surety's expense defend, indemnify and hold harmless the Owner against a duly tendered claim, demand, lien or suit.

§ 5 The Surety's obligations to a Claimant under this Bond shall arise after the following:

§ 5.1 Claimants, who do not have a direct contract with the Contractor,

- **.1** have furnished a written notice of non-payment to the Contractor, stating with substantial accuracy the amount claimed and the name of the party to whom the materials were, or equipment was, furnished or supplied or for whom the labor was done or performed, within ninety (90) days after having last performed labor or last furnished materials or equipment included in the Claim; and
- **.2** have sent a Claim to the Surety (at the address described in Section 13).

§ 5.2 Claimants, who are employed by or have a direct contract with the Contractor, have sent a Claim to the Surety (at the address described in Section 13).

§ 6 If a notice of non-payment required by Section 5.1.1 is given by the Owner to the Contractor, that is sufficient to satisfy a Claimant's obligation to furnish a written notice of non-payment under Section 5.1.1.

§ 7 When a Claimant has satisfied the conditions of Sections 5.1 or 5.2, whichever is applicable, the Surety shall promptly and at the Surety's expense take the following actions:

§ 7.1 Send an answer to the Claimant, with a copy to the Owner, within sixty (60) days after receipt of the Claim, stating the amounts that are undisputed and the basis for challenging any amounts that are disputed; and

§ 7.2 Pay or arrange for payment of any undisputed amounts.

§ 7.3 The Surety's failure to discharge its obligations under Section 7.1 or Section 7.2 shall not be deemed to constitute a waiver of defenses the Surety or Contractor may have or acquire as to a Claim, except as to undisputed amounts for which the Surety and Claimant have reached agreement. If, however, the Surety fails to discharge its obligations under Section 7.1 or Section 7.2, the Surety shall indemnify the Claimant for the reasonable attorney's fees the Claimant incurs thereafter to recover any sums found to be due and owing to the Claimant.

§ 8 The Surety's total obligation shall not exceed the amount of this Bond, plus the amount of reasonable attorney's fees provided under Section 7.3, and the amount of this Bond shall be credited for any payments made in good faith by the Surety.

§ 9 Amounts owed by the Owner to the Contractor under the Construction Contract shall be used for the performance of the Construction Contract and to satisfy claims, if any, under any construction performance bond. By the Contractor furnishing and the Owner accepting this Bond, they agree that all funds earned by the Contractor in the performance of the Construction Contract are dedicated to satisfy obligations of the Contractor and Surety under this Bond, subject to the Owner's priority to use the funds for the completion of the work.

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User Notes: (1800747094)

§ 10 The Surety shall not be liable to the Owner, Claimants or others for obligations of the Contractor that are unrelated to the Construction Contract. The Owner shall not be liable for the payment of any costs or expenses of any Claimant under this Bond, and shall have under this Bond no obligation to make payments to, or give notice on behalf of, Claimants or otherwise have any obligations to Claimants under this Bond.

§ 11 The Surety hereby waives notice of any change, including changes of time, to the Construction Contract or to related subcontracts, purchase orders and other obligations.

§ 12 No suit or action shall be commenced by a Claimant under this Bond other than in a court of competent jurisdiction in the state in which the project that is the subject of the Construction Contract is located or after the expiration of one year from the date (1) on which the Claimant sent a Claim to the Surety pursuant to Section 5.1.2 or 5.2, or (2) on which the last labor or service was performed by anyone or the last materials or equipment were furnished by anyone under the Construction Contract, whichever of (1) or (2) first occurs. If the provisions of this Paragraph are void or prohibited by law, the minimum period of limitation available to sureties as a defense in the jurisdiction of the suit shall be applicable.

§ 13 Notice and Claims to the Surety, the Owner or the Contractor shall be mailed or delivered to the address shown on the page on which their signature appears. Actual receipt of notice or Claims, however accomplished, shall be sufficient compliance as of the date received.

§ 14 When this Bond has been furnished to comply with a statutory or other legal requirement in the location where the construction was to be performed, any provision in this Bond conflicting with said statutory or legal requirement shall be deemed deleted herefrom and provisions conforming to such statutory or other legal requirement shall be deemed incorporated herein. When so furnished, the intent is that this Bond shall be construed as a statutory bond and not as a common law bond.

§ 15 Upon request by any person or entity appearing to be a potential beneficiary of this Bond, the Contractor and Owner shall promptly furnish a copy of this Bond or shall permit a copy to be made.

§ 16 Definitions

§ 16.1 Claim. A written statement by the Claimant including at a minimum:

- **.1** the name of the Claimant;
- **.2** the name of the person for whom the labor was done, or materials or equipment furnished;
- **.3** a copy of the agreement or purchase order pursuant to which labor, materials or equipment was furnished for use in the performance of the Construction Contract;
- **.4** a brief description of the labor, materials or equipment furnished;
- **.5** the date on which the Claimant last performed labor or last furnished materials or equipment for use in the performance of the Construction Contract;
- **.6** the total amount earned by the Claimant for labor, materials or equipment furnished as of the date of the Claim;
- **.7** the total amount of previous payments received by the Claimant; and
- **.8** the total amount due and unpaid to the Claimant for labor, materials or equipment furnished as of the date of the Claim.

§ 16.2 Claimant. An individual or entity having a direct contract with the Contractor or with a subcontractor of the Contractor to furnish labor, materials or equipment for use in the performance of the Construction Contract. The term Claimant also includes any individual or entity that has rightfully asserted a claim under an applicable mechanic's lien or similar statute against the real property upon which the Project is located. The intent of this Bond shall be to include without limitation in the terms "labor, materials or equipment" that part of water, gas, power, light, heat, oil, gasoline, telephone service or rental equipment used in the Construction Contract, architectural and engineering services required for performance of the work of the Contractor and the Contractor's subcontractors, and all other items for which a mechanic's lien may be asserted in the jurisdiction where the labor, materials or equipment were furnished.

§ 16.3 Construction Contract. The agreement between the Owner and Contractor identified on the cover page, including all Contract Documents and all changes made to the agreement and the Contract Documents.

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§ 16.4 Owner Default. Failure of the Owner, which has not been remedied or waived, to pay the Contractor as required under the Construction Contract or to perform and complete or comply with the other material terms of the Construction Contract.

§ 16.5 Contract Documents. All the documents that comprise the agreement between the Owner and Contractor.

§ 17 If this Bond is issued for an agreement between a Contractor and subcontractor, the term Contractor in this Bond shall be deemed to be Subcontractor and the term Owner shall be deemed to be Contractor.

§ 18 Modifications to this bond are as follows:

« »

(Space is provided below for additional signatures of added parties, other than those appearing on the cover page.)

CONTRACTOR AS PRINCIPAL		**SURETY**	
Company:	*(Corporate Seal)*	Company:	*(Corporate Seal)*
Signature:		Signature:	
Name and Title:	« »« »	Name and Title:	« »« »
Address:	« »	Address:	« »

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AIA® Document A312® – 2010

Performance Bond

CONTRACTOR:
(Name, legal status and address)

« »« »
« »

SURETY:
(Name, legal status and principal place of business)

« »« »
« »

OWNER:
(Name, legal status and address)

« »« »
« »

CONSTRUCTION CONTRACT
Date: « »
Amount: $ « »
Description:
(Name and location)

« »
« »

BOND
Date:
(Not earlier than Construction Contract Date)
« »
Amount: $ « »
Modifications to this Bond: « » None « » See Section 16

CONTRACTOR AS PRINCIPAL
Company: *(Corporate Seal)*

Signature: _____
Name and Title: « »« »

SURETY
Company: *(Corporate Seal)*

Signature: _____
Name and Title: « »« »

(Any additional signatures appear on the last page of this Performance Bond.)

(FOR INFORMATION ONLY — Name, address and telephone)

AGENT or **BROKER:**

« »
« »
« »

OWNER'S REPRESENTATIVE:
(Architect, Engineer or other party:)

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ADDITIONS AND DELETIONS: The author of this document has added information needed for its completion. The author may also have revised the text of the original AIA standard form. An *Additions and Deletions Report* that notes added information as well as revisions to the standard form text is available from the author and should be reviewed.

This document has important legal consequences. Consultation with an attorney is encouraged with respect to its completion or modification.

Any singular reference to Contractor, Surety, Owner or other party shall be considered plural where applicable.

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§ 1 The Contractor and Surety, jointly and severally, bind themselves, their heirs, executors, administrators, successors and assigns to the Owner for the performance of the Construction Contract, which is incorporated herein by reference.

§ 2 If the Contractor performs the Construction Contract, the Surety and the Contractor shall have no obligation under this Bond, except when applicable to participate in a conference as provided in Section 3.

§ 3 If there is no Owner Default under the Construction Contract, the Surety's obligation under this Bond shall arise after

.1 the Owner first provides notice to the Contractor and the Surety that the Owner is considering declaring a Contractor Default. Such notice shall indicate whether the Owner is requesting a conference among the Owner, Contractor and Surety to discuss the Contractor's performance. If the Owner does not request a conference, the Surety may, within five (5) business days after receipt of the Owner's notice, request such a conference. If the Surety timely requests a conference, the Owner shall attend. Unless the Owner agrees otherwise, any conference requested under this Section 3.1 shall be held within ten (10) business days of the Surety's receipt of the Owner's notice. If the Owner, the Contractor and the Surety agree, the Contractor shall be allowed a reasonable time to perform the Construction Contract, but such an agreement shall not waive the Owner's right, if any, subsequently to declare a Contractor Default;

.2 the Owner declares a Contractor Default, terminates the Construction Contract and notifies the Surety; and

.3 the Owner has agreed to pay the Balance of the Contract Price in accordance with the terms of the Construction Contract to the Surety or to a contractor selected to perform the Construction Contract.

§ 4 Failure on the part of the Owner to comply with the notice requirement in Section 3.1 shall not constitute a failure to comply with a condition precedent to the Surety's obligations, or release the Surety from its obligations, except to the extent the Surety demonstrates actual prejudice.

§ 5 When the Owner has satisfied the conditions of Section 3, the Surety shall promptly and at the Surety's expense take one of the following actions:

§ 5.1 Arrange for the Contractor, with the consent of the Owner, to perform and complete the Construction Contract;

§ 5.2 Undertake to perform and complete the Construction Contract itself, through its agents or independent contractors;

§ 5.3 Obtain bids or negotiated proposals from qualified contractors acceptable to the Owner for a contract for performance and completion of the Construction Contract, arrange for a contract to be prepared for execution by the Owner and a contractor selected with the Owner's concurrence, to be secured with performance and payment bonds executed by a qualified surety equivalent to the bonds issued on the Construction Contract, and pay to the Owner the amount of damages as described in Section 7 in excess of the Balance of the Contract Price incurred by the Owner as a result of the Contractor Default; or

§ 5.4 Waive its right to perform and complete, arrange for completion, or obtain a new contractor and with reasonable promptness under the circumstances:

.1 After investigation, determine the amount for which it may be liable to the Owner and, as soon as practicable after the amount is determined, make payment to the Owner; or

.2 Deny liability in whole or in part and notify the Owner, citing the reasons for denial.

§ 6 If the Surety does not proceed as provided in Section 5 with reasonable promptness, the Surety shall be deemed to be in default on this Bond seven days after receipt of an additional written notice from the Owner to the Surety demanding that the Surety perform its obligations under this Bond, and the Owner shall be entitled to enforce any remedy available to the Owner. If the Surety proceeds as provided in Section 5.4, and the Owner refuses the payment or the Surety has denied liability, in whole or in part, without further notice the Owner shall be entitled to enforce any remedy available to the Owner.

§ 7 If the Surety elects to act under Section 5.1, 5.2 or 5.3, then the responsibilities of the Surety to the Owner shall not be greater than those of the Contractor under the Construction Contract, and the responsibilities of the Owner to the

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User Notes: (1298888292)

Surety shall not be greater than those of the Owner under the Construction Contract. Subject to the commitment by the Owner to pay the Balance of the Contract Price, the Surety is obligated, without duplication, for

.1 the responsibilities of the Contractor for correction of defective work and completion of the Construction Contract;

.2 additional legal, design professional and delay costs resulting from the Contractor's Default, and resulting from the actions or failure to act of the Surety under Section 5; and

.3 liquidated damages, or if no liquidated damages are specified in the Construction Contract, actual damages caused by delayed performance or non-performance of the Contractor.

§ 8 If the Surety elects to act under Section 5.1, 5.3 or 5.4, the Surety's liability is limited to the amount of this Bond.

§ 9 The Surety shall not be liable to the Owner or others for obligations of the Contractor that are unrelated to the Construction Contract, and the Balance of the Contract Price shall not be reduced or set off on account of any such unrelated obligations. No right of action shall accrue on this Bond to any person or entity other than the Owner or its heirs, executors, administrators, successors and assigns.

§ 10 The Surety hereby waives notice of any change, including changes of time, to the Construction Contract or to related subcontracts, purchase orders and other obligations.

§ 11 Any proceeding, legal or equitable, under this Bond may be instituted in any court of competent jurisdiction in the location in which the work or part of the work is located and shall be instituted within two years after a declaration of Contractor Default or within two years after the Contractor ceased working or within two years after the Surety refuses or fails to perform its obligations under this Bond, whichever occurs first. If the provisions of this Paragraph are void or prohibited by law, the minimum period of limitation available to sureties as a defense in the jurisdiction of the suit shall be applicable.

§ 12 Notice to the Surety, the Owner or the Contractor shall be mailed or delivered to the address shown on the page on which their signature appears.

§ 13 When this Bond has been furnished to comply with a statutory or other legal requirement in the location where the construction was to be performed, any provision in this Bond conflicting with said statutory or legal requirement shall be deemed deleted herefrom and provisions conforming to such statutory or other legal requirement shall be deemed incorporated herein. When so furnished, the intent is that this Bond shall be construed as a statutory bond and not as a common law bond.

§ 14 Definitions

§ 14.1 Balance of the Contract Price. The total amount payable by the Owner to the Contractor under the Construction Contract after all proper adjustments have been made, including allowance to the Contractor of any amounts received or to be received by the Owner in settlement of insurance or other claims for damages to which the Contractor is entitled, reduced by all valid and proper payments made to or on behalf of the Contractor under the Construction Contract.

§ 14.2 Construction Contract. The agreement between the Owner and Contractor identified on the cover page, including all Contract Documents and changes made to the agreement and the Contract Documents.

§ 14.3 Contractor Default. Failure of the Contractor, which has not been remedied or waived, to perform or otherwise to comply with a material term of the Construction Contract.

§ 14.4 Owner Default. Failure of the Owner, which has not been remedied or waived, to pay the Contractor as required under the Construction Contract or to perform and complete or comply with the other material terms of the Construction Contract.

§ 14.5 Contract Documents. All the documents that comprise the agreement between the Owner and Contractor.

§ 15 If this Bond is issued for an agreement between a Contractor and subcontractor, the term Contractor in this Bond shall be deemed to be Subcontractor and the term Owner shall be deemed to be Contractor.

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User Notes: (1298888292)

§ 16 Modifications to this bond are as follows:

« »

(Space is provided below for additional signatures of added parties, other than those appearing on the cover page.)

CONTRACTOR AS PRINCIPAL		**SURETY**	
Company:	*(Corporate Seal)*	Company:	*(Corporate Seal)*
Signature:		Signature:	
Name and Title:	« »« »	Name and Title:	« »« »
Address:	« »	Address:	« »

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User Notes: (1298888292)

SURETY BOND RIDER

To be attached to and form a part of Bond Number _____

dated _____ executed by IMC CONSTRUCTION, INC., as Principal and _____, as Surety in favor of _____, as Obligee.

This rider serves to amend the noted bond as follows:

- **Unless Claimant shall have given written preliminary notice to the Contractor and the Surety within sixty (60) days after the Claimant provided or performed the last of the work or labor, or furnished the last of the materials for which the claim is made, which notice shall state: 1) the name of the Claimant; 2) for whom the labor or materials were furnished; 3) the amount claimed to be due; 4) the general nature and character of the labor or material furnished or performed; 5) the date of completion of the work or labor, furnished or the last date of delivery of the materials for which the claim is made; and 6) a brief description of the Project and property which is the subject of the claim; Such notice shall be served by certified mail, return receipt requested, to the Contractor and the Surety at the addresses set forth in this Bond.**

- **Claimant must serve notice within 60 days of the last work notifying the principal and the surety that it has been paid. (Note that as presently drafted, this notice requirement also applies to your subcontractors).**

- **Claimant cannot file suit until 90 days after completion of Claimant's work.**

- **Claimant must serve a notice of intent to sue, not sooner than 90 days nor more than six months after the completion of Claimant's work.**

- **Claimant must file suit within one year of the last date of work.**

NOTWITHSTANDING any of the foregoing terms and conditions, under no circumstance will the obligations and/or guarantees provided hereunder extend to Claimants who do not have a direct contract with the Contractor, where the Contractor has satisfied its payment obligation to its subcontractor or otherwise paid all sums due and owing under the contract between the Contractor and subcontractor.

Signed, sealed and dated this _____ day of _____, 20_____.

Witness: **Principal: IMC CONSTRUCTION, INC.**

By:_____ **By:_____**

Surety:

By:_____

Exhibit "O-1"

SUBCONTRACTOR FORM OF PARTIAL RELEASE OF CLAIMS AND LIENS

Project Description:

Property Description:

Owner:

1. The undersigned acknowledges all sums due on the project are paid to date and the undersigned waives and releases all rights he/she/it has to assert claims of any kind, including, without limitation, those arising from mechanic's lien, material man's lien, construction lien, or other lien rights, against IMC Construction, Inc., the Owner or any interest of the Owner or others in the Property, with respect to work performed or labor, materials, or equipment supplied through_____ ("Applicable Release Date")

2. As an inducement to making the requested payment, the undersigned represents and warrants the following:

(a) all payments due have been made to date, less retainage, for all work performed and labor, materials, and equipment supplied in connection with the Project through the Applicable Release Date; and

(b) there are no outstanding claims with respect to work performed on the Project, or labor, materials, or equipment supplied for the Project through the Applicable Release Date, except for those listed on the reverse of this page; and

(c) the undersigned has not assigned any claim or lien right against the owner or its property to any other person or entity; and

(d) all persons or entities from whom the Subcontractor obtained labor, materials, or equipment for the Project have been paid in full and no such person or entity has any claim or lien against the Project for work performed on the Project, or labor, materials, or equipment supplied for the Project, through the Applicable Release Date; and

(e) no security interest has been given or executed by the undersigned in connection with any materials or equipment placed upon or installed in the Project.

Company Name: _____

Address: _____

_____

BY: _____
(Signature)

Typed Name and Title: _____

SWORN TO AND SUBSCRIBED BEFORE ME THIS

_____ day of _____. 20___

_____ NOTARY PUBLIC

Exhibit "O-2"

FINAL RELEASE OF LIENS AND GENERAL INDEMNITY

SUBCONTRACTOR'S GENERAL RELEASE AND INDEMNITY AGREEMENT

KNOW ALL MEN BY THESE PRESENTS, that _____ (the "SUBCONTRACTOR"), in consideration of final payment on the _____ _____ ("Project"), and for other good and valuable consideration, receipt of which is acknowledged by signing this General Release and Indemnity Agreement, has released and discharged, for itself, its successors and assigns, and all of its related and subsidiary corporations, _____ ("Owner") and their respective officers, directors and employees, successors and assigns of such corporations, of and from all actions and causes of actions, suits, debts, contracts, agreements, claims and demands of whatsoever kind of nature, in law or equity, known or unknown, foreseen and unforeseen, which the undersigned now ha or may hereafter have, arising out of, relating to, on in connection with all labor, materials and equipment furnished and delivered pursuant to the Agreement dated _____, between IMC Construction, Inc. and SUBCONTRACTOR, as modified, relating to, arising out of, or in connection with the Project, which the undersigned ever had, now has, or any of them hereafter can, shall, or may have, for, or by reason of any cause, matter or thing whatsoever, from the beginning of the world to the date of these presents.

The undersign does hereby release waive and forever relinquish unto the Owner and IMC Construction, Inc., all stop notice rights, liens, demands and claims of lien, whatever which the undersigned now has, might or could hereafter have against said Owner, IMC Construction, Inc. or on or against the Project.

The undersigned assumes entire responsibility and liability for any and all claims and/or damages of any nature or character whatsoever for which SUBCONTRACTOR and/or SURETY, if any, shall be liable under the Contract Documents, or by operation of law, with respect to the Project covered by the aforementioned Agreement, and agrees to defend, indemnify and save OWNER and LENDER harmless from and against all claims, demands, liabilities, interests, loss, damage, attorney's fees, costs and expense of whatsoever kind or nature, whether for property damage or personal injuries (including death) to any and all person, whether employees of OWNER and LENDER, or otherwise caused or occasioned thereby, resulting therefrom, arising out of or therefrom, or occurring in connection therewith or as imposed by law, limited to the scope of the subject matter of said subcontract. The undersigned further agrees to defend, indemnify and save OWNER and LENDER and IMC Construction, Inc. harmless from any and all manner of claims, damages or suits, including all costs and expenses (including attorneys' fees) which OWNER and/or LENDER may incur or sustain in connection with same.

IN WITNESS WHEREOF, the undersigned has caused this General Release and Indemnity Agreement to be signed this _____ day of _____, 20___.

_____
(SUBCONTRACTOR)

By:_____

Title:_____

Exhibit "O-3"

CONTRACT # _____

CONTRACTOR'S PARTIAL RELEASE OF RIGHT OF LIEN

KNOW ALL MEN BY THESE PRESENT: That IMC Construction, Inc. as contractor for the construction of improvements at _____ ("the Project"), for and in consideration of monies to be paid to and received by it for its partial performance of the construction Contract with _____ (hereinafter "Owner"), dated _____, said monies being in the amount of $_____ set forth within the Application and Certificate of Payment dated_____, does hereby release said amount from any and all claim or right of lien on said above described improvements and premises which may be available to the undersigned under the statues of the Commonwealth of Pennsylvania, for work performed on said Project. Subject to the penalties of the law, the undersigned certifies that said monies shall be applied to payment of any and all subcontractors' materialmen, or suppliers of the undersigned in connection with and under direction that said payments be applied to accounts pertaining to the Project.

Contractor further represents and warrants that it has previously invoiced Owner for labor, material and services supplied pursuant to the contract in the aggregate amount of $_____ as set forth within the aforesaid Application and Certificate for Payment. Contractor warrants that it has been paid $_____ to date and Contractor does hereby release said amount from any and all claim of right of lien on said above described improvements and premises which may be available to the undersigned under the statues of the Commonwealth of Pennsylvania for work performed on said Project.

DATED: _____

IMC Construction, Inc._____
(CONTRACTOR NAME)

BY: _____

_____
NAME AND TITLE

STATE OF: _____

COUNTY OF: _____

The foregoing instrument was acknowledged before me this_____ day of _____, by _____, on behalf of the contractor.

_____
Notary Public

Exhibit "O-4"

FINAL WAIVER AND RELEASE OF LIENS AND CLAIMS

STATE OF _____

COUNTY OF _____

Whereas, the undersigned, _____ of IMC Construction, Inc. ("Company") who has furnished certain materials, equipment, services and/or labor for the project known as _____ ("Project"), which is located at _____ _____ ("Property"), and is owned by _____ ("Owner");

Now therefore, acknowledging receipt of the sum of $_____, the Company waives and releases any and all claims, demands, actions, causes of action or other rights against the owner and the Property, at law, under a contract, in tort, equity or otherwise, and any and all liens or claims of liens or any right against any labor and/or material payment bond it has, may have had or may have in the future upon the foregoing described Property or in relation to the Company's performance of work on or the furnishing of equipment, services, and/or labor for the contract totaling $_____.

This Waiver and Release applied to all facts, acts, events, circumstances, changes, constructive or actual delays, accelerations, extra work, disruptions, interferences and the like which have occurred, or may be claimed to have occurred prior to the date of this Waiver and Release, whether or not known to the Company at the time of execution of this Waiver and Release.

The Company acknowledges that this Waiver and Release is in substantial conformity with the requirements of applicable law and shall be binding and conclusive against the Company for all purposes, subject only to payment in full of the amount set forth above.

Given under hand and seal this _____ day of _____, 20___.

IMC Construction, Inc.
Company

Signed_____(SEAL)
By:_____

Title:_____

Before me the undersigned, a Notary Public for _____County, State of _____, personally appeared _____, and acknowledged the execution of this instrument this _____ day of _____, 20____

_____
(SEAL)
Notary Public